

Tentative Rulings

August 21, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

13. *Torres v. Reveles, et al*, Case No. CIVSB2508211
Defendants' Motion to Stay Civil Proceedings
8/21/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion.

Neither the U.S. Constitution nor the California Constitution requires a stay of civil proceedings pending the outcome of a criminal proceeding, and simultaneous civil and criminal proceedings are unobjectionable unless they result in substantial prejudice to the rights of the parties. (*Avant! Corp. v. Superior Court* (2000) 79 Cal.App.4th 876, 885.)

However, “[h]istorically, courts have devised a number of procedures designed to accommodate the specific circumstances of the case.” (*Avant! Corp. v. Superior Court* (2000) 79 Cal.App.4th 876, 882.) “One accommodation is to stay the civil proceeding until disposition of the related criminal prosecution.” (*Avant!, supra*, 79 Cal.App.4th at p. 882, citing *People v. Coleman* (1975) 13 Cal.3d 867, 885.) Another possibility is to allow the civil defendant to invoke the privilege against self-incrimination, even if doing so may limit the defendant’s ability to put on a defense.” (*Ibid.*) Other accommodations have included conferring an immunity on the party invoking the privilege or precluding a litigant who claims the constitutional privilege against self-incrimination in discovery from waiving the privilege and testifying at trial to matters upon which the privilege had been asserted. Each of these procedural tools is devised based on the circumstances of the particular case. “The alleviation of tension between constitutional rights has been treated as within the province of a court’s discretion in seeking to assure the sound administration of justice.” (*Avant!, supra*, at p. 882, quoting from *People v. Coleman, supra*, at p. 885.)”

In this case, Defendant Perez was arrested and charged in Case No. FSB25000519. He argues that a stay is necessary to preserve his 5th Amendment privilege, as inquiries in this matter necessarily overlap with this wrongful death action.

Importantly, Plaintiff has *not* submitted an opposition to this motion. A failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].) Thus, the Court would grant this motion.

14. *Rodriguez v. Ramirez, et al*, Case No. CIVSB2603109
Defendant’s Motion to Strike Portions of the Complaint
7/16/26, 9:00 a.m., Dept. S-17

This matter was continued from its original date of July 16, 2026

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The Court would **DENY**.

Case Summary

This is an automobile accident, personal injury case. Plaintiff alleges that he was injured in an automobile accident that was caused by Defendant on July 20, 2025. Plaintiff asserts that Defendant